

FORM 70 R
REGISTRAR'S CERTIFICATE
(DIVORCE ACTION)

Supreme Court of Prince Edward Island
(Family Section)



Court File No.:

Applicant/Petitioner:

Respondent:

REGISTRAR'S CERTIFICATE

(Instructions: If appropriate box at left cannot be checked, check box in right margin and describe deficiency in red by the box.)

The Registrar at _____ certifies that:

- | | | | Deficiency |
|-----|--------------------------|---|-------------------------------|
| 1. | | PRELIMINARY | |
| (a) | ☐ | The Respondent has been noted in default. | 1(a) ☐ |
| (b) | ☐ | No Answer has been filed by the Respondent. | 1(b) ☐ |
| | ☐ | The Respondent's Answer has been withdrawn. | |
| | ☐ | The Respondent's Answer has been struck out. | |
| (c) | ☐ | A Central Divorce Registry clearance certificate has been received. | 1(c) ☐ |
| 2. | | SERVICE | |
| (a) | ☐ | Service is not required because the spouses have filed a joint petition. | 2(a) ☐ |
| | ☐ | The Affidavit of Service has been filed. | |
| | ☐ | A signed acknowledgement of services has been filed. | |
| (b) | ☐ | The Respondent was served personally at _____
(address) | 2(b) ☐ |
| | ☐ | The Respondent was served by substituted service. | |
| 3. | | AFFIDAVITS | |
| (a) | ☐ | An affidavit of the Petitioner has been filed on the motion. | 3(a) ☐ |
| (b) | ☐ | An affidavit of the Respondent has been filed on the motion. | 3(b) ☐ |
| (c) | ☐ | An affidavit of _____ has been on the motion. | 3(c) ☐ |
| (d) | ☐ | The Notice of Motion indicates that oral evidence will be presented. | 3(d) ☐ |

4. **CLAIM FOR RELIEF**
- (a) ☐ The Petition contains only a claim for divorce. 4(a) ☐
☐ The Petition contains a claim for relief under an Act, other than a divorce, and refers to the Act in each claim.
- (b) ☐ The Petition contains a claim for support or a division of property and sets out the nature and amount of relief claimed and the amount of support claimed for each dependent. 4(b) ☐
- (c) ☐ The Petition contains a claim for inclusion of terms of a separation agreement of previous court order and refers to the specific provisions to be included. 4(c) ☐
5. **GROUND FOR DIVORCE**
The Petition claims divorce on this ground of
- (a) ☐ separation since _____, and the Petitioner's Affidavit was sworn at least one year after that date. 5(a) ☐
(b) ☐ adultery 5(b) ☐
(c) ☐ cruelty 5(c) ☐
6. **PROOF OF MARRIAGE**
- (a) ☐ A certificate of marriage or equivalent thereof from another jurisdiction has been filed, and particulars correspond to those in the Petition. 6(a) ☐
(b) ☐ The Petition states that it is impossible to obtain a certificate of marriage or equivalent thereof from another jurisdiction, and the Affidavit gives the date and place of marriage. 6(b) ☐
7. **RESIDENCE**
- ☐ The Petition indicates that the
☐ petitioner
☐ respondent
has resided in Prince Edward Island since _____,
a period of at least one year before the Petition was issued. 7 ☐
8. **CHILDREN**
- (a) ☐ There are children of the marriage.
☐ There are no children of the marriage.
- (b) ☐ The Director of Child Protection has not intervened. 8(b) ☐
☐ The Family Court Counsellor has filed a report.
☐ There has been no child advocate appointed.
☐ There has been no counsel appointed for the child.
☐ The Office of the Children's Lawyer has intervened.
9. **OTHER COURT PROCEEDINGS OR ORDERS**
- (a) ☐ Family law proceedings or orders have been identified 9(a) ☐
(b) ☐ Criminal proceedings or orders have been identified 9(b) ☐
(c) ☐ Civil protection proceedings or orders have been identified 9(c) ☐
10. **NOTICE TO PETITIONER**
- ☐ The Petitioner has been informed of any deficiencies noted on this certificate and has requested the motion be submitted despite them. 10 ☐

DATE: _____

Issued by: _____
Registrar